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CMA Board Approval: 04/20/2026

Effective Date: 04/20/2026

COOLFONT MOUNTAINSIDE ASSOCIATION SCHEDULE OF FINES, FEES, AND CHARGES POLICY RESOLUTION 2026-02

This Resolution establishes the Schedule of Fees, Fines, and Charges for CMA and is adopted by the Board of Directors of Coolfont Mountainside Association, Inc., on the 20th day of May, 2026, for the following purposes in the following words and figures. This Resolution includes the revisions made in Amendment 01, approved on April 14, 2025, and effective May 1, 2025.

Authority

WHEREAS, the Coolfont Development was established by a Declaration of Covenants and Restrictions dated the 13th day of December 1968 and recorded in the Office of the Clerk of the County Commission of Morgan County in Deed Book 217 at page 666, and

WHEREAS, Coolfont is a "Planned Community" within the meaning of West Virginia Code Chapter 36B, ("the Act") and as a Planned Community established prior to the enactment of Chapter 36B of the Code, it constitutes a pre-existing planned community governed by the provisions of Article 1 § 204, and Article 4, § 109, of the Act, and

WHEREAS, the Bylaws of The Coolfont Mountainside Association, Inc, Article 5, § 5.2 states, in part, The Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law, or with policies adopted by the Members at an Annual or Special Meeting, for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties and Facilities by (1) Members and the immediate family of Members, (2) Members' guests, and (3) Members' tenants. Such rules and regulations shall include procedures to assure that any penalties shall not be imposed arbitrarily or unreasonably and shall provide a mechanism for appeals by Members, and

WHEREAS, the Bylaws of The Coolfont Mountainside Association, Inc, Article 8, § 8.1(d) provides the Board shall have power (d) To adopt and publish the rules and regulations, including fees, if any, governing the use of the Common Properties and facilities as provided for in Section 5.2.

NOW THEREFORE, the Board of Directors adopts this Schedule of Fines, Fees, and Charges for the purpose of assessing the same in accordance with the rules, regulations, and governing documents pertaining to the Association and its members.

Resolution

This Resolution establishes the Schedule of Fines, Fees, and Charges for enforcement of CMA rules, regulations, and governing documents. The fees outlined in this Schedule supersede and replace any Fines, Fees, and Charges specified in the referenced Authority document as noted below.

Amendments

This Resolution shall be reviewed annually by the Board of Directors and updated as appropriate through a simple majority vote of the Board of Directors during a duly called meeting with the required quorum present.

Fines, Fees, and Charges

Cross-Connection and Backflow Prevention Violations

Authority

Coolfont Mountainside Association, Policy Resolution 2026-02, Cross-Connection and Backflow Prevention Policy

Enforcement

Violations of the Cross-Connection and Backflow Prevention Policy are normally recommended by the CMAWS Committee or CMAWS Operations Manager to the Board. The Board may apply them by notifying owners of CMA properties per the Fine, Fees, and Charges Policy.

Fines, Fees, and Charges

- $200 for the first violation of cross-connection/backflow prevention policy, $400 for a second violation by the same owner(s), $800 for each subsequent violation by the same owner(s), all in the sole discretion of the Board.
- $50 per hour or any part thereof per CMA representative for time spent on individual owner questions or concerns or conducting an on-site inspection.
- $100 each for termination or reactivation of water service due to violation of the policy.
- If a threat to public health is perceived, as determined by the CMAWS Operations Manager or the Chair of the CMAWS Committee or the Board, an owner’s or CMA facility's water service may be terminated with charges indicated above applying to the owner/user if the threat is determined to be valid. Reactivation of water service may be directed or implemented by CMAWS Operations Manager and the Chair of the CMAWS Committee and the Board if a determination is made the threat is not valid or has been corrected with charges indicated above applying to the owner/user if the threat, in the opinion of the CMAWS Operations Manager and the CMAWS Committee Chair, was determined to be valid.

DACC Violations

Authority

Design Guidelines and Building Regulations: II. B. Violations, in part

Owners who do not conform to the requirements by the DACC or the Board will be compelled to correct the construction at their expense, provide restitution, or pay fines, charges, or assessments for certain activity (such as tree cutting) that did not receive prior approval.

Also: Violations including but not limited to tree removal, cutting vistas, tree thinning, encroaching utility easements, and/or failing to apply or proceeding without application is also cause for possible fines/disciplinary action.

Enforcement

Modifications to existing property including but not limited to antennas and satellite dishes, clothes drying, exterior finishes, fire pits/receptacles, garbage and trash receptacles, hot tubs, playground equipment, RVs, trailers, and boats, signs, walls and fences. Failing to apply for modifications or proceeding without approval is also cause for possible fines/disciplinary action.

Fines, Fees, and Charges

First offense: $50.00

Second offense: $100.00

Continuous violations: A continuing fine of up to $50.00 per day*

Upon recommendation from the DACC, the Board will assess continuing fines, charges, or assessments to the property owner, and the effective date, as appropriate for each case, as approved by a majority vote of board members present at a duly called meeting.

*If the owner fails to appear at a hearing or does not remedy the violation by the agreed date, violation charges of up to $50 per day will accrue until the violation is cured.

Domestic Pet Policy Violations

Authority

Coolfont Mountainside Association, Policy Resolution 2024-02, Domestic Pet Policy

Enforcement

Enforcement 2(a): A first violation that does not include injury to another person or pet will result in an email or letter of warning to the property owner. (b): A second violation– or any violation resulting in injury to another person or pet will incur a fine to the property owner, without regard to any local enforcement penalty or penalty pursued by the injured party.

These fines supersede any noted in the Domestic Pet Policy:

- Pet not leashed or under control of owner: Warning for first violation; $50.00 per second or subsequent violation within six months, assessed to the property owner.
- Injury to another person: $100.00 per violation, assessed to the property owner, without regard to any local enforcement penalty or penalty pursued by the injured party.

Exterior Fire Policy Violations

Authority

Coolfont Mountainside Association, Policy Resolution 2023-01 Exterior Fire Policy

Enforcement

Each property owner is responsible for control of exterior fires on their property, ensuring the use of only authorized fire containers, and compliance with all safety requirements as noted in the Policy. Owners that do not take immediate action to correct a violation will have their CMA amenity rights suspended for 30 days per violation. In addition, the Board may suspend an owner's use of an exterior fire container for up to one year and/or assess a violation fine.

Fines, Fees, and Charges

These fines supersede any noted in the Exterior Fire Policy:

- Open, on the ground, or in ground fire (no screened cover): $200 per violation.
- Burning of trash or other waste: $200 per violation.
- Use of accelerants: $200 per violation
- Unattended fire: $200 per violation
- No fire extinguisher or functional water hose within reach: $200 per violation.
- Exterior fires burning during a high wind warning or High, Very High, or Extreme Fire Danger period: $500 per violation.

Rules and Regulations Regarding Use of Property Violations

Authority

Rules and Regulations Regarding the Use of Property, effective 01/01/1989

Enforcement

Violations for business use restrictions including but not limited to group rental housing,

accessory apartments, special home occupations, industrial operations, resource extraction, institutional and educational facilities, agricultural or animal breeding uses, trailers or RVs parked on lots, advertising on lots or vehicles parked on lots. Failing to apply for special exceptions for business use or proceeding without approval is also cause for fines/disciplinary action.

Fines, Fees, and Charges

- Violation for a business/commercial entity or an individual(s) to own/offer a property for use solely or predominantly as a short-term rental and exclusively as an investment property. $50 per calendar day
- Violation for offering, advertising, chartering, leasing, letting, renting, or licensing a property for the purpose of a short-term rental to the public, without a special exception for Group Rental Housing granted by the Board. $50 per calendar day
- Violation for offering, advertising, chartering, leasing, letting, renting, or licensing a property for Group Rental Housing that exceeds occupancy limits specified in the special exception granted by the Board. $100 per calendar day
- Violation for failure of owner(s) to retain names and addresses of guests in Group Rental Housing for a period of one (1) calendar year and to provide that information upon request to the Board within two (2) calendar weeks of request. $50 per calendar week after two (2) week period
- Violation for commercial use (see 1989 RRRUP, Art 3.3), industrial operations (outside storage, warehousing, manufacturing, etc.), resource extraction, institutional/educational facilities, or similar $10 per calendar day
- Miscellaneous violations (including but not limited to wayside stands, animal breeding, outside animal housing) $50 per calendar day
- Violation for vehicle larger than passenger/step van, and/or trailers, or campers parked on lot. $10 per vehicle per calendar day
- Violation for exceeding the determined maximum number of vehicles allowed on a lot. $10 per vehicle per calendar day
- Violation for advertising on lot or common land or advertising on vehicle parked on lot $10 per calendar day

Septic System Maintenance Policy Violations

Authority

Coolfont Mountainside Association, Policy Resolution 2024-04 Septic System Maintenance Policy

Property owners within the CMA are required to maintain their septic system in efficient and effective condition in accordance with the CMA and CMA Water & Sewer (CMAWS) rules, regulations, and policy, whether it be septic systems with leach fields or connected to the CMAWS central effluent collection system.

Enforcement

Owners must have their septic tanks pumped and inspected according to the Policy interval by a WV licensed septic system contractor. Any owner found to have fouled the central effluent collection system or with septic leakage on their property shall be liable for all costs associated with clearing the fouling and/or repairing the leak and restoring all grounds.

Fines, Fees, and Charges

These fines supersede any noted in the Septic System Maintenance Policy:

- Septic maintenance violation: Actual cost of septic pumping and inspection, plus a $250 administrative fee.
- Fouling central effluent lines: Actual cost of remediation of lines to collection point, plus a $500 administrative fee, and any regulatory, agency, or other fines imposed on CMA.
- Septic leakage on any property: Actual cost of repair of owner's septic equipment or CMA septic lines, and/or clean up and restoration of grounds (private or common), plus a $500 administrative fee, and any regulatory, agency, or other fines imposed on CMA.
- Inadequately sized septic system for residence: Possible restriction on use of property until resolved.

Trash Control Policy Violations

Authority

Coolfont Mountainside Association, Policy Resolution 2020-05 Trash Control Policy.

Enforcement

Owners have 24 hours from notification to remedy the situation. After 24 hours from notification, the owner will become liable for a trash clean-up fee at a rate noted below. The Site Manager, or other CMA authority in the absence of the Site Manager, may arrange for cleanup of the trash and may arrange for the repair, replacement, or removal of the trash container, as appropriate, if not remedied within 30 days.

Fines, Fees, and Charges

These fines and time limitations supersede any noted in the Trash Control Policy Resolution:

- Trash cleanup per bag of trash: $25.00, plus $100 administrative fee per occurrence.
- Repair, replacement, and/or removal of trash container: Actual cost of repair, replacement, and/or removal, plus $250 administrative fee per occurrence.
- Removal of large debris (construction, mattresses, etc.): Actual haul away and disposal cost, plus $250 administrative fee per occurrence.

Additional Violations

- Damage to any CMA Property: Actual cost of repairs/restitution, plus $250 administrative fee.
- Discharge of a firearm within CMA and/or hunting: $250 for first offense; $500 each additional offense.
- Discharge of fireworks within CMA: $250 for first offense; $500 each additional offense.
- Parking on CMA paved and gravel roads: $50 per vehicle per day; vehicle is also subject to towing if it poses a hazard; fines doubled during snow events.
- Noise violations: $250 for first offense; $500 each additional offense within a 6-month period
- Other C&R or Bylaws violations: To be determined by the CMA Board of Directors.

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2026-02 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held: April 20, 2026

Motion by: _Valerie Creason_____ Seconded by: __Stephen Crane_____

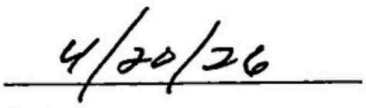
VOTE:

	YES	NO	ABSTAIN	ABSENT
Norm Rosenberg, President	___X_____	_____	_____	_____
Stephen Crane, Vice President	___X_____	_____	_____	_____
Valerie Creason, Secretary	___X_____	_____	_____	_____
Jaron Ervin, Treasurer	___X_____	_____	_____	_____
Dave Creason, Director	___X_____	_____	_____	_____
Evelyn Israel, Director	_____	_____	_____	___X_____
Nancy Lidard, Director	___X_____	_____	_____	_____

ATTEST:



Secretary



Date

Resolution effective date: April 20, 2026